

SUPREME COURT FOR THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
AMED COMPORE,

Index No.:

Plaintiff,

SUMMONS

-against-

Plaintiff designates
NEW YORK COUNTY
as the Venue and place of
trial.THE CITY OF NEW YORK, MAYOR BILL DE BLASIO,
MAYOR ERIC ADAMS, NYPD POLICE
COMMISSIONER JAMES O'NEILL, NYPD POLICE
COMMISSIONER DERMOT SHEA, NYPD POLICE
COMMISSIONER KEECHANT SEWELL, NYPD
DETECTIVE EDWIN MARTINEZ (BADGE # 1177), and
NYPD MEMBERS JOHN or JANE DOE #1-5,The basis of Venue is
that a substantial part of
the conduct giving rise to
this Complaint occurred
in New York County.

Defendants.

-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer on the plaintiff's attorney within 20 days after the service of this Summons, or within 30 days after service of this Summons is complete if this Summons is not personally delivered to you within the State of New York.

In case of your failure to Answer this Summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the interest, costs and/or disbursements of this action.

Dated: Brooklyn, New York
May 22, 2024

KAISHIAN & MORTAZAVI LLC
Attorneys for Plaintiff

By: 
Maryanne K. Kaishian, Esq.

TO:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

MAYOR OF THE CITY OF NEW YORK BILL DE BLASIO
100 Church Street
New York, NY 10007

MAYOR OF THE CITY OF NEW YORK ERIC ADAMS
100 Church Street
New York, NY 10007

NYPD POLICE COMMISSIONER JAMES O'NEILL
New York City Police Department
1 Police Plaza
New York, New York 10038

NYPD POLICE COMMISSIONER DERMOT SHEA
New York City Police Department
1 Police Plaza
New York, New York 10038

NYPD POLICE COMMISSIONER KEECHANT SEWELL
New York City Police Department
1 Police Plaza
New York, New York 10038

NYPD DETECTIVE EDWIN MARTINEZ (BADGE # 1177)
NYPD Narcotics Borough Manhattan South
1 Police Plaza
New York, New York 10038

-and-

NYPD MEMBERS JOHN or JANE DOE #1-5.

SUPREME COURT FOR THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

AMED COMPORE,

Plaintiff,

-against-

THE CITY OF NEW YORK, MAYOR BILL DE BLASIO,
MAYOR ERIC ADAMS, NYPD POLICE COMMISSIONER
JAMES O'NEILL, NYPD POLICE COMMISSIONER DERMOT
SHEA, NYPD POLICE COMMISSIONER KEECHANT SEWELL,
NYPD DETECTIVE EDWIN MARTINEZ (BADGE # 1177), and
NYPD MEMBERS JOHN or JANE DOE #1-5,

Defendants.

-----X

Case No.:

VERIFIED
COMPLAINT

**PLAINTIFF DEMANDS
A TRIAL BY JURY**

Plaintiff, AMED COMPORE, by his attorneys, KAISHIAN & MORTAZAVI LLC, by
MARYANNE K. KAISHIAN, ESQ., an attorney duly licensed to practice before the United States
District Court for the Eastern District of New York, hereby complains of Defendants as follows:

PRELIMINARY STATEMENT

1. On October 12, 2019, Plaintiff, Amed Compore, was wrongfully assaulted, battered, and arrested by Defendant NYPD members without cause and falsely accused of possessing and/or selling narcotics. These charges that were entirely fabricated by Defendants following a supposed "buy-and-bust" operation undertaken by Defendants NYPD Detective Edwin Martinez (Badge # 1177) and Defendant NYPD Member Does # 1-5.

2. The case against Mr. Compore terminated in his favor with a dismissal of all charges on or about February 22, 2023.

3. Mr. Compore now brings the instant case before this Court for, *inter alia*, unreasonable search and seizure, excessive force, malicious prosecution, false arrest, and fabrication of evidence.

PARTIES

4. At the time of the events giving rise to this Complaint, Plaintiff, AMED COMPORE, was a resident of New York County in the City and State of New York.

5. At all relevant times mentioned herein, **DEFENDANT CITY OF NEW YORK** (“Defendant City” or “New York City”), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department (“NYPD”), and their employees.

6. **DEFENDANT NEW YORK CITY MAYOR BILL DE BLASIO** (“Defendant de Blasio”) was at all times relevant to this Complaint prior to January 1, 2022, the Mayor of New York City. As Mayor, Defendant Adams, at all relevant times, was an elected officer and the “chief executive officer of the city,” New York City Charter § 3, and had final authority to appoint and/or remove any NYPD employees and agent, including the New York City Police Commissioner. He is sued individually and in his official capacity.

7. **DEFENDANT NEW YORK CITY MAYOR ERIC ADAMS** (“Defendant Adams”) was at all times relevant to this Complaint after January 1, 2022, the Mayor of New York City. As Mayor, Defendant Adams, at all relevant times, was an elected officer and the “chief executive officer of the city,” New York City Charter § 3, and had final authority to appoint and/or remove any NYPD employees and agent, including the New York City Police Commissioner. He is sued individually and in his official capacity.

8. Defendants de Blasio and Adams are referred to collectively herein as “Defendant Mayors,” or, along with other policymaking defendants, as “Policymaker Defendants.”

9. **DEFENDANT NYPD COMMISSIONER JAMES O’NEILL** (“Defendant O’Neill”) was at all times relevant to this Complaint prior to December 1, 2019, the Police

Commissioner of the NYPD. As Police Commissioner, Defendant O'Neill, personally and/or through his authorized delegates, at all relevant times had final authority to promulgate and implement administrative and managerial policies and procedures, including policies and procedures as to personnel hiring, training, supervision, and discipline with respect to NYPD officers' performance of their duties, and constituted a City policymaker for whom the City is liable. He is sued individually and in his official capacity.

10. **DEFENDANT NYPD COMMISSIONER DERMOT SHEA** ("Defendant Shea") was at all times relevant to this Complaint between December 1, 2019, and January 1, 2022, the Police Commissioner of the NYPD. As Police Commissioner, Defendant Shea, personally and/or through his authorized delegates, at all relevant times had final authority to promulgate and implement administrative and managerial policies and procedures, including policies and procedures as to personnel hiring, training, supervision, and discipline with respect to NYPD officers' performance of their duties, and constituted a City policymaker for whom the City is liable. He is sued individually and in his official capacity.

11. **DEFENDANT NYPD COMMISSIONER KEECHANT SEWELL** ("Defendant Sewell") was at all times relevant to this Complaint after January 1, 2022, the Police Commissioner of the NYPD. As Police Commissioner, Defendant Sewell, personally and/or through her authorized delegates, at all relevant times had final authority to promulgate and implement administrative and managerial policies and procedures, including policies and procedures as to personnel hiring, training, supervision, and discipline with respect to NYPD officers' performance of their duties, and constituted a City policymaker for whom the City is liable. She is sued individually and in her official capacity.

12. Defendants O'Neill, Shea, and Sewell are referred to collectively herein as "Defendant NYPD Commissioners," or, along with other policymaking defendants, as "Policymaker Defendants."

13. **DEFENDANT NYPD DETECTIVE EDWIN MARTINEZ** (Badge # 1177) ("Defendant Martinez"), at all times hereinafter mentioned, was employed by the City of New York as a Detective with the NYPD and was assigned to NYPD's Narcotics Borough Manhattan South. As a Detective, Defendant Martinez was responsible for supervising and commanding all lower-ranking NYPD members during operations for which Defendant Martinez was operating in a supervisory position within the NYPD, and these NYPD members must follow commands issued by Defendant Martinez. He is sued individually and in his official capacity.

14. The true names and identities of **DEFENDANT NYPD MEMBERS JOHN OR JANE DOE #1 – 5** are currently unknown to Plaintiff, and these Defendants are fictitiously assigned the name(s) "Defendant NYPD Does # 1 – 5" for the purposes of the instant Complaint. At all times hereinafter mentioned, Defendant NYPD Does # 1 – 5 were employed by the City of New York as members of the NYPD. Defendant Doe #1 is believed to be a female NYPD member. These Defendants are sued individually and in their official capacity.

15. At all times hereinafter mentioned, all individual Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

16. Each and every act and omission by the individual Defendants alleged herein occurred while said Defendants were acting within the scope of their employment by the Defendant City.

17. The individual Defendants were duly appointed and acting officers, servants, employees, and agents of Defendant City who were acting for, on behalf of, and with the power and authority vested in them by Defendant City and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

18. All Defendants were each and all responsible, in whole and/or in part, for the planning for and/or creation, promulgation, implementation, and/or enforcement of the unconstitutional policies, practices and/or customs complained of herein, and/or condoned, acquiesced in, adopted, and/or approved of the same, through their acts and/or failures to act, as set forth more fully below.

19. At all times relevant herein, as set forth more fully below, Defendants' actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.

20. Although they were aware of the conduct, present for it, and knew or should have known it was unconstitutional, at no time did any of the Defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the unconstitutional conduct engaged in by their fellow officers.

21. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, cloaked with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

22. Each individual Defendant is sued in her or his individual and official capacities.

JURISDICTION and CONDITIONS PRECEDENT

23. This matter is properly before this Court as a majority of the incidents occurring herein took place in New York County, City and State of New York.

24. Plaintiff timely served Notices of Claim on the municipal Defendant within ninety (90) days of the accrual of the relevant claims complained of herein and complied with all conditions precedent to commencing an action under New York State law.

25. The damages amount sought by Plaintiff exceeds the jurisdiction of all lower courts.

26. Mr. Compore was examined by the Defendant City of New York pursuant to GML §50-H on May 14, 2024.

27. At least thirty days have elapsed since service of Plaintiff's Notices of Claim and adjustment and payment thereof has been neglected or refused.

28. This action was initiated within one year and ninety days of the accrual of all Plaintiff's claims pursuant to New York State law, and within three years of the accrual of all claims brought pursuant to New York City Admin. Code Title 8, Ch. 8 § 8-802, et seq., 42 U.S.C. § 1983, and Federal law.

STATEMENT OF FACTS

29. At the time of the events giving rise to this Complaint, Plaintiff Amed Compore was a resident of New York County, City and State of New York.

30. On October 12, 2019, at approximately 2:00 AM, Mr. Compore lawfully present in front of the premises of 617 9th Avenue, City, State, and County of New York.

31. At this approximate time and place, Mr. Compore was approached by Defendant NYPD Member Jane Doe #1, who appeared to be a female wearing plain clothes and who Mr. Compore did not know to be a police officer.

32. Defendant Doe was acting as an undercover officer in conjunction with Defendants Martinez and Does # 2-5, and was attempting to effectuate a "buy-and-bust" sting in the area.

33. Defendant Doe #1 asked Mr. Compore, in sum and substance, to assist her in procuring narcotics.

34. Mr. Compore stated that he was not able to assist Defendant Doe #1, a stranger, and did not know why she approached him.

35. Defendant Doe #1 began to follow Mr. Compore. Defendant Doe #1 continued to insist, without basis, that Mr. Compore must assist her in either buying narcotics or directing her to a person who could assist her in doing the same.

36. Mr. Compore repeatedly declined to procure narcotics for Defendant Doe #1 and repeatedly denied knowledge of how to accomplish the same.

37. Mr. Compore committed no crimes.

38. Despite Mr. Compore's refusal to engage in the illegal activity requested by Defendant Doe #1, individual NYPD Defendants, including Defendant Police Officer Edwin Martinez and Defendants John or Jane Doe # 2-5, abruptly exited a nearby unmarked vehicle and began to chase Mr. Compore. These individuals did not identify themselves as NYPD members.

39. Mr. Compore feared for his life and attempted to leave the area, having committed no crime and reasonably believing he was in danger, having been accosted by multiple strangers who did not identify themselves as NYPD members.

40. These NYPD members, including Defendant Martinez and Defendant Does # 1 – 5, tackled Mr. Compore to the ground without cause or justification, injuring him.

41. The force of Defendants' assault caused Mr. Compore to strike his knees and arms on the ground, causing significant pain, suffering, bruising, lacerations, and additional injuries. The full extent of these injuries is not yet known, and their effects are ongoing.

42. These individual Defendants forced Mr. Compore into a prone position and placed their body weight on Mr. Compore's body, back, legs, and neck. Mr. Compore experienced difficulty breathing and feared for his life.

43. At least two individuals among Defendants Martinez and Does #1-5 then proceeded to unlawfully and forcibly search Mr. Compore, including by reaching inside of his clothes and searching his person.

44. Despite finding no contraband during this initial improper search, at least one of these NYPD Defendant lifted Mr. Compore off of the ground and slammed him down to the hard to the ground, causing additional injuries to Mr. Compore's wrists and back, and causing additional swelling, bruising, lacerations, and pain.

45. At least one Defendant among Defendants Martinez and Does #1-5 placed overly tight handcuffs on Mr. Compore's wrists.

46. Mr. Compore repeatedly requested for these handcuffs to be loosened, but Defendants refused. This refusal to adjust and/or loosen these overly tight handcuffs caused additional pain, bruising, and swelling to both of Mr. Compore's wrists.

47. Defendants Martinez and Does # 1-5 thereafter transported Mr. Compore to an NYPD precinct within New York County.

48. Mr. Compore required medical assistance for his injuries. He repeatedly requested the same of Defendants, but this care was denied, exacerbating Mr. Compore's injuries and his related pain and suffering.

49. Defendants refused to inform Mr. Compore of the charges against him.

50. Mr. Compore did not know why he had been arrested, having committed no crime and having obeyed all lawful orders issued by NYPD members.

51. In response to Mr. Compore's pleas for his cuffs to be loosened and for medical attention, Defendant Martinez told Mr. Compore, in sum and substance, to "shut the fuck up."

52. Thereafter, the NYPD Defendants, including Defendant Martinez and at least one member among Defendant NYPD Does #1-5, presented false evidence to the New York County District Attorneys Office and/or the New York Special Narcotics Prosecutor's Office to knowingly induce the false criminal prosecution against Mr. Compore.

53. Mr. Compore spent approximately thirty-six (36) hours in NYPD custody prior to his arraignment on the criminal complaint at approximately 2:00 PM on or about October 14, 2019.

54. Thereafter, the NYPD Defendants, including Defendant Martinez and at least one member among Defendant NYPD Does #1-5, presented false evidence before a Grand Jury in New York County, inducing an indictment against Mr. Compore on the B-felony charge of Criminal Sale of a Controlled Substance (Penal Law § 220.39).

55. On January 14, 2020, Mr. Compore was arraigned on this felony indictment and entered a plea of not guilty.

56. Mr. Compore was forced to return to court on approximately ten (10) occasions to refute the false charges against him.

57. All charges against Mr. Compore were terminated in his favor when the case against him was dismissed and sealed pursuant to CPL § 160.50 on February 22, 2023.

58. Defendant Martinez and Defendant NYPD Does # 1-5 fabricated evidence by, *inter alia*: falsely representing the circumstances of Mr. Compore's arrest to prosecutors to suggest cause permitting a lawful seizure; by falsely representing the cause for Defendants' approach of Mr. Compore; by providing fabricated evidence to prosecutors in the Early Case Assessment Bureau of the New York County DA's Office and/or in the Office of the Special Narcotics Prosecutor; by providing false testimony to the Grand Jury, resulting in Mr. Compore's indictment;

by falsely informing prosecutors that the search of Mr. Compore had been lawful; by falsely denying Defendants' utilization of excessive force; by fabricating Defendants' narrative of Mr. Compore's conduct before, during, and after his approach by Defendants, including in ways constitutionally tailored to suggest unlawful conduct by Plaintiff and to justify Defendants' unlawful conduct; and by otherwise knowingly presenting false evidence and information likely to influence a jury.

59. Defendants' conduct has caused Mr. Compore serious pain, suffering, and injuries, including injuries to his knees, particularly his left knee, both ankles, wrists, and back, which reduced his range of motion, caused him chronic pain, and resulted in significant interference with his daily life.

60. Mr. Compore was forced to seek care at St. Barnabas Hospital following his release from Defendants' custody, as Defendants refused to provide him with medical care, exacerbating his injuries and suffering and forcing him to expend medical costs.

61. Defendant's conduct has caused Mr. Compore mental anguish, anxiety, humiliation, and post-traumatic stress, in addition to pecuniary damages.

62. The full extent of Mr. Compore's injuries is not yet known, and their effects are ongoing.

FIRST CLAIM FOR RELIEF

Unlawful Search and Seizure

Against Defendants Martinez and Does #1-5 Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

63. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

64. Defendants' seizure of the Plaintiff herein was done without any judicial warrant authorizing them to search or seize any Plaintiff or his property, was unreasonable, and was done without privilege or lawful justification.

65. Plaintiff did not consent to any search and was conscious of his confinement by Defendants.

66. Defendants did not have individualized probable cause to seize, detain, or arrest Plaintiff.

67. This search was not conducted subsequent to a lawful arrest.

68. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; interfered with his right to security and privacy; and/or otherwise damaged and injured Plaintiff.

69. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

SECOND CLAIM FOR RELIEF

**The Right of Security Against Unreasonable Search and Seizure and Against Excessive Force, Regardless of Whether Such Force Is Used in Connection with a Search or Seizure
Against Defendant City and Defendants Martinez and Does #1-5 Pursuant to
New York City Administrative Code Title 8, Chapter 8, § 8-801, et seq.**

70. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

71. As described above, the Defendants violated Plaintiff's right to be free from "unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure."

72. Pursuant to NYC Admin. Code Title 8, Chapter 8, §§ 8-801 through 8-809 of the New York City Civil Rights Law, Plaintiff maintains a private right of action against the individual NYPD Defendants and their employer, Defendant City, for this conduct.

73. The NYPD Defendants, including Defendant Martinez and Defendant NYPD Does # 1-5, as employees of the Defendant City's police department, are "covered individuals" as defined in § 8-801 of this Chapter.

74. Pursuant to § 8-802, *et seq.*, NYPD Defendants and their employer, including Defendant City, are liable to Plaintiff for the conduct described herein.

75. Pursuant to § 8-803, Plaintiff's claims under common law or pursuant to any other law or rule are not limited or abrogated by his invocation of this statute.

76. The remedies provided by this chapter are in addition to any other remedies that may be provided for under common law or pursuant to any other law or rule.

77. Pursuant to § 8-804, Defendants may not invoke the defense of qualified immunity to avoid liability for this cause of action.

78. Pursuant to § 8-806, Plaintiff is entitled to compensatory and punitive damages, attorney's fees and costs, and an order restraining the Defendants from engaging in further violative conduct.

THIRD CLAIM FOR RELIEF

Excessive Force

Against Defendants Martinez and Defendant Does # 1 - 5 Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution

79. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

80. Defendants' use of force against Plaintiff was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

81. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

82. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

FOURTH CLAIM FOR RELIEF

Violations of Plaintiff's Due Process Rights Against All Defendants Pursuant to 42 U.S.C. § 1983 and the Fifth and Fourteenth Amendments to the United States Constitution

83. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

84. Defendants City and Policymakers designed and/or implemented policies and practices pursuant to which those Defendants who ordered, effected, and otherwise participated in seizing Plaintiff and subjected Plaintiff to the violations of his Due Process rights described elsewhere herein.

85. Defendants collectively and individually denied and/or frustrated Plaintiff's Due Process rights and deprived Plaintiff of liberty and property without due process of law.

86. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

87. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

FIFTH CLAIM FOR RELIEF

Municipal Liability

Against Defendants City and Policymakers Pursuant to 42 U.S.C. § 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978) for Defendants' Violations of Plaintiff's Rights Under the First, Fourth, and Fourteenth Amendments to the United States Constitution

88. Plaintiff hereby incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

89. The Policymaker Defendants above were responsible for implementing and enforcing policies and procedures on behalf of the Defendant City of New York.

90. The facts pleaded above describe the policies, practices, and customs Defendants subjected the Plaintiff to, including, but not limited to: policies of unlawful searches and seizures; excessive uses of force; arrests on DAT-mandatory charges; restrictions on freedom of association; and unlawful street and/or vehicular stops, searches, and seizures.

91. All of the wrongful acts or omissions complained of herein were carried out by the individual named and unnamed police officer defendants pursuant to:

- a. Formal policies, rules, and procedures of Defendant City;
- b. Actions and decisions by Defendant City's policymaking agents including, but not limited to, the Policymaker Defendants named above;
- c. Customs, practices, and usage of the NYPD that are so widespread and pervasive as to constitute *de facto* policies accepted, encouraged, condoned, ratified, sanctioned, and/or enforced by Defendant City, Defendant Commissioners, and other policymaking officials;

- d. Defendant City's deliberate indifference to Plaintiff's rights secured by the First, Fourth, and Fourteenth Amendments of the United States Constitution, as evidenced by the City's failures, and the failures of the City's policymaking agents, to train, supervise, and discipline NYPD officers, despite full knowledge of the officers' wrongful acts, as described herein.
92. Accordingly, Plaintiff is entitled to the damages requested in this Complaint.

SIXTH CLAIM FOR RELIEF

**Failure to Train and/or Supervise
Against Defendants City, Mayors, NYPD Commissioners, and Martinez Pursuant to 42 U.S.C. § 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978)**

93. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
94. Defendant City, and its agents, including Defendants Mayors and NYPD Commissioners, failed to train and supervise the Defendant NYPD Members.
95. All individual Defendants were employees and/or agents of Defendant City and were acting within the scope of their employment at the time of the conduct giving rise to Mr. Compure's injuries.
96. Defendants knew or should have known that Defendant NYPD Members were likely to violate the constitutional rights of individuals in their custody.
97. Defendants know that NYPD Members are certain to regularly encounter situations such as those described herein—including the police approach and/or arrest and/or search of civilians and/or the execution of "buy-and-bust" narcotics operations in public spaces within New York City—through the course of their employment.
98. Defendants knew that there is a history of wrongful conduct in these scenarios by NYPD Members.

99. Defendants also knew that individual NYPD Defendants have a documented history of adverse credibility findings and/or abusive conduct against individuals they encountered during their employment.

100. Defendants further knew that training and/or supervision could ameliorate the potential harms of constitutional violations in these scenarios, including civil rights violations, coerced confessions, and physical and emotional injuries.

101. Indeed, Defendant Martinez has a documented history of civil rights abuses in scenarios similar to the circumstances in which Defendants violated Plaintiff's rights and caused him the injuries described herein.

102. Nevertheless, Defendants failed to train its agents and/or employees regarding their conduct during the scenarios described herein and further failed to supervise its agents and/or employees when engaged in high-risk contact.

103. By failing to train and supervise Defendant NYPD Members, these Defendants exhibited a conscious disregard and/or deliberate indifference for the risks posed by NYPD members' conduct absent adequate training and supervision.

104. The harms suffered by Plaintiff are the direct result of Defendants' failures.

SEVENTH CLAIM FOR RELIEF

**Negligent Screening, Hiring, and Retention
Against Defendants City, Mayors, and NYPD Commissioners Pursuant to 42 U.S.C. § 1983
and Monell v. Department of Social Services, 436 U.S. 658 (1978)**

105. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

106. All Defendants were employees and/or agents of Defendant City and were acting within the scope of their employment at the time of the conduct giving rise to Mr. Compore's injuries.

107. Defendant City and its agents knew that the individual Defendants had a propensity for the conduct giving rise to Mr. Compore's injuries.

108. Defendants failed to adequately screen, hire, or retain employees in consideration of such employees' recognizable propensity for harm.

109. Such documented history of Defendants' willingness to lie and/or misrepresent facts while under oath and/or otherwise cause harm to individuals subjected to interactions with police renders Defendants' conduct both predictable to and preventable by policymaker Defendants.

110. Rather than removing or disciplining NYPD members who have provided non-credible testimony to courts and/or had previously engaged in abusive conduct, such as Defendant Martinez, who has a history of civil rights complaints, lawsuits, and adverse findings against him, policymaker Defendants have continued to employ and empower such NYPD members to continue inflicting predictable harm on individuals they interact with, including Plaintiff.

111. Such conduct is so foreseeable as to rise to the level of deliberate indifference.

EIGHTH CLAIM FOR RELIEF

Failure to Intervene

Against Defendants Martinez and Does #1-5 Pursuant to 42 U.S.C. § 1983

112. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

113. The Defendant City, by its agents, had a special duty to Plaintiff and possessed sufficient knowledge that inaction would lead to the harms suffered by Plaintiff.

114. Defendants witnessed and/or knew of the harmful conduct of fellow Defendants and merely observed and/or unreasonably ignored such conduct against Plaintiff.

115. At no time did any Defendants intervene in the deficient conduct of their colleagues or otherwise fulfil their specialized duty to protect Mr. Compore.

116. Defendant City and its employees and/or agents breached the existing duty to protect Plaintiff, and such inaction enabled and/or facilitated and/or exacerbated the harms caused by Defendants' conduct and suffered by Plaintiff.

NINTH CLAIM FOR RELIEF

Equal Protection and Selective Enforcement
Against All Defendants Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Protected Under the Fourteenth Amendment to the United States Constitution

117. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

118. As discussed elsewhere herein, Defendants City and its policymakers designed and/or implemented policies and practices pursuant to which those Defendants who ordered, effected, and otherwise participated in detaining Plaintiff thus subjected Plaintiff to the above-described violations of Plaintiff's Equal Protection rights.

119. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

120. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

TENTH CLAIM FOR RELIEF

Conspiracy
Against Defendants Martinez and NYPD Does # 1-5 Pursuant to 42 U.S.C. § 1985(3)

121. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

122. Through the conduct described and complained of herein, Defendants conspired to deprive Plaintiff of the equal protection of the laws, or of equal privileges and immunities under the laws.

123. Defendants acted in furtherance of this conspiracy against Plaintiff, and as a result of this conduct, Plaintiff was injured in his person and property and deprived of his constitutional and civil rights.

ELEVENTH CLAIM FOR RELIEF

Failure to Prevent Civil Rights Violations

Against Defendants Martinez and NYPD Does # 1-5 Pursuant to 42 U.S.C. § 1986

124. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

125. Defendants, including individual NYPD Defendants, had knowledge that the wrongs conspired to be done against Plaintiff in violation of 42 U.S.C. § 1985 were to be committed and had the power to prevent and/or aid in preventing the commission of this conduct.

126. Defendants neglected and/or refused to prevent the commission of this conduct and Plaintiff sustained harm and/or the exacerbation of harm and the deprivation of his rights as a result of this failure.

127. Defendants are liable for all damages caused by the conspiratorial conduct they failed to prevent despite possessing the power to do so.

TWELFTH CLAIM FOR RELIEF

Malicious Prosecution

Against Defendants Martinez and Does #1-5 Pursuant to 42 U.S.C. 1983 and Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution

128. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

129. Defendants instituted or caused the claim against Plaintiff to be instituted without any probable cause. Defendants provided false information to further the criminal prosecution of Plaintiff.

130. Defendants' motive in instituting the suit was malicious, and the prosecution of Plaintiff was terminated in his favor when the prosecution declined to prosecute any charges stemming from Plaintiff's arrest on October 12, 2019.

131. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their liberty and their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

132. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

THIRTEENTH CLAIM FOR RELIEF

Violations of Fair Trial Rights

Against Defendants Martinez and Does #1-5 Pursuant to 42 USC § 1983 and the Sixth and Fourteenth Amendments of the United States Constitution

133. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

134. NYPD Defendants were investigating officials involved in arresting and investigating the circumstances of the events described herein.

135. While performing their duty as members of the NYPD, Defendants fabricated evidence likely to influence a jury's decision, were that information to be presented to a jury, and forwarded that information to prosecutors.

136. Defendants disseminated false information to prosecutors, the Court, and the public to intentionally misrepresent the circumstances of Plaintiff's arrest in an attempt to exonerate themselves of wrongdoing, discredit Plaintiff, and taint prosecutors and/or any potential jury pool.

137. As a result of Defendants' conduct, Plaintiff suffered a deprivation of his liberty.

FOURTEENTH CLAIM FOR RELIEF

Violations of New York State Law

Pursuant to the New York State Constitution and New York State Common Law

138. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

139. As a result of the conduct described herein, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

I. Respondeat Superior

140. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, cloaked with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

II. Violations of the New York State Constitution

141. Defendants, acting under color of law, violated Plaintiff's rights pursuant to Article I §§ 11 (equal protection) and 12 (security against unreasonable searches and seizures) of the New York State Constitution.

142. A damages remedy here is necessary to effectuate the purposes of Article I, §§ 11 and 12 of the New York State Constitution, and appropriate to ensure full realizations of Plaintiff's rights under those sections.

III. Excessive/Unreasonable Detention

143. By the actions described above, the Defendants described above did excessively detain Plaintiff within the meaning of New York common law.

144. In addition to the false and warrantless nature of Plaintiff's initial detention by Defendants, Defendants further held Plaintiff in custody for an excessive period of time for the purpose of gathering additional evidence to justify Plaintiff's arrest and/or due to by ill will on the part of Defendants against Plaintiff and/or to cause delay for delay's sake.

145. Plaintiff was conscious of his confinement by Defendants, and this confinement was undertaken without his consent.

IV. Denial and/or Delay of Medical Care

Pursuant to New York State Civil Rights Law Article 3 § 28 (N.Y. Civ. § 28) as well as New York State Common and Constitutional Law

146. At the time of the incident giving rise to the instant Complaint, Plaintiff was in the custody of Defendants, who are each a "police officer, peace officer or other law enforcement representative or entity" within the meaning of the New York State Civil Rights Law.

147. As such, Defendants had a duty to provide assistance and treatment for Plaintiff's medical needs.

148. Defendants abdicated their duties under this statute and failed to provide and/or delayed in providing medical care to Plaintiff, who was suffering from injuries apparent to Defendants as requiring urgent medical care.

149. This denial and/or delay was unreasonable and caused Plaintiff serious harm, exacerbated his injuries and/or medical condition, and caused him significant pain and suffering.

150. This failure resulted in serious injury and/or the exacerbation of Plaintiff's injuries for which Defendants are liable.

V. Assault and Battery

151. Defendants committed assault within the meaning of New York common law against Plaintiff by intentionally placing Plaintiff in fear of imminent harmful or offensive contact.

152. The force utilized by Defendants was unreasonable and intentional, and this force caused significant injury to Plaintiff.

153. Defendants committed battery within the meaning of New York common law against Plaintiff by intentionally physically contacting Plaintiff without Plaintiff's consent.

154. Defendants did thereby inflict assault and battery upon the Plaintiff.

VI. Excessive Force

155. Defendants use of force against Plaintiff was unjustified, objectively unreasonable, and/or intended as punishment when taking into consideration the facts and circumstances that confronted Defendants.

156. This conduct caused Plaintiff's physical injury and emotional anguish, and Defendants are liable to Plaintiff. for this conduct and the resulting injuries suffered by Plaintiff.

VII. Fabrication of Evidence

157. Defendants, including Defendant Martinez and NYPD Defendants # 1 – 5, were investigating officials in this matter. Defendants knowingly fabricated evidence likely to influence a jury and forwarded this information to prosecutors.

158. As a result of this fabrication, Plaintiff suffered deprivations of his life, liberty, and/or property and suffered significant injuries.

159. These deprivations include: Plaintiff's detention in the NYPD's custody for approximately 24 hours prior to his arraignment, including in the precinct and at Central Booking; Plaintiff's subsequent incarceration at Rikers Island, which was predicated upon his arrest on October 12, 2019, when considered as part of a bail application on unrelated charges; and Plaintiff's mandated return to Court on approximately ten (10) occasions during the pendency of the criminal case against him until it was terminated in his favor.

VIII. Negligence

160. Defendants owed a special duty to Plaintiff and breached this duty through their conduct described herein. Defendants' negligence in fulfilling their duty to Plaintiff resulted in Plaintiff's injuries and they are liable for this conduct and its resulting injuries.

IX. Negligent Infliction of Emotional Distress

161. Defendants owed Plaintiff a duty of care and breached this duty of care through the conduct described herein, directly causing the emotional harms, including post-traumatic stress, insomnia, depression, and ongoing anxiety and fear

IV. Intentional Infliction of Emotional Distress

162. By the actions described above, Defendants engaged in extreme and outrageous conduct.

163. Defendants intentionally caused Plaintiff to suffer severe emotional distress and/or acted with a disregard for the substantial probability of causing the same.

164. Plaintiff suffered severe emotional distress as the direct result of Defendants' conduct, which was outside the bounds of decency.

X. Negligent Hiring, Training, and Supervision

165. Upon information and belief, Defendant City supervised and trained the police officials described above and did so in a negligent manner resulting in the harms described.

166. At all times relevant herein, Defendants were employed by, and acting in the scope of their employment with, Defendant City. Defendant City should have known that Defendant NYPD Members had a propensity for the conduct causing Plaintiff's injuries.

167. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

DEMAND FOR A JURY TRIAL

Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

CONCLUSION AND DEMAND FOR JUDGMENT

WHEREFORE, Plaintiff demands judgment against the individual Defendants and the City of New York as follows:

- i. Actual and punitive damages against the individual Defendants in an amount to be determined at trial;
- ii. Actual damages in an amount to be determined at trial against the City of New York;
- iii. Policy change;
- iv. Statutory attorney's fees, disbursements, and costs of the action pursuant to, *inter alia*, 42 U.S.C. §1988, New York City Admin. Code, Ch. 8, Title 8, § 8-802, *et seq.*, and New York State common law; and

v. Such other relief as the Court deems just and proper.

Dated: Brooklyn, New York
May 23, 2024

KAISHIAN & MORTAZAVI LLC

By: 
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ATTORNEY VERIFICATION

I, MARYANNE K. KAISHIAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

1. I am the attorney of record for the Plaintiff.
2. I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true.
3. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, and other pertinent information contained in my files.
4. I make this verification because Plaintiff does not reside in the County (Kings) where I maintain my office.

Dated: Brooklyn, New York
May 23, 2024

By: 
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